



# HIGH COURTS JUDGES (PENSIONARY BENEFITS) ORDER, 2007

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## PRESIDENT'S ORDER 8 OF 2007

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Order

*to provide for pensionary benefits to the Judges of High Courts*

WHEREAS it is expedient to provide for pensionary benefits to the Judges of the High Courts who have ceased to hold office as Judges of High Courts in pursuance of Article 3 of the Oath of Office (Judges) Order, 2007 and matters connected therewith or ancillary thereto;

NOW, THEREFORE, in pursuance of the Proclamation of the 3rd day of November, 2007, and the Provisional Constitution Order No.1 of 2007 read with Fifth Schedule to the Constitution of the Islamic Republic of Pakistan and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Order:-

**1. Short title and commencement.**-(1) This Order may be called the High Courts Judges (Pensionary Benefits) Order, 2007.

(2) It shall come into force at once and shall be deemed to have taken effect on and with effect from the 3rd day of November, 2007, provided, however, clause (4) shall be deemed to apply with effect from the 25th day of January, 2000.

**2. Interpretation.** In this Order "Judge" means a permanent Judge of a High Court and includes Chief Justice.

**3. Order to override the other laws.** The provisions of this Order shall have effect notwithstanding anything contained in any other law for the time being in force.

**4. Retirement and pension, etc.** A Judge who has ceased to hold office of a Judge of High Court in terms of Article 3 of the Oath of Office (Judges) Order, 2007 or has otherwise retired from service as permanent Judge shall be entitled to full pension and other retirement benefits admissible to a permanent Judge of a High Court and the provisions of clause (3) of Article 207 of the Constitution of the Islamic Republic of Pakistan shall apply to such a Judge, including a permanent Judge who had retired under the High Court Judges (Service Benefits) Order, 2000 (P.O. No.5 of 2000):

Provided that commutation of pension shall be admissible to such Judge on the basis of his actual age as on the 3rd day of November, 2007.

**5. District and Sessions Judge appointed as a Judge of the High Court.** A person, who was holding the post of District and Sessions Judge immediately before his appointment as a Judge of the High Court and had ceased to hold office as such with effect from the 3rd day of November, 2007, in terms of Article 3 of the Oath of Office (Judges) Order, 2007 and is not entitled to pensionary benefits under this Order, shall be deemed to have retired from service and shall be entitled to such pension as would have been admissible to him on superannuation as District and Sessions Judge.

